

The emergence of AI in music licensing has raised complex issues surrounding intellectual property rights and creative ownership. One such issue is determining who should be credited as the creator of computer-generated music. Should it be the person who provided the input data, the AI programmer who developed the technology, or the numerous musicians whose works were included in the dataset used to train the AI? While apps like Boomy enable non-musicians to utilize AI to produce and distribute music, with the option to either receive a portion of streaming royalties or purchase the copyright of their tracks, it is clear that the rapid pace of technological advancements is outpacing the ability of copyright laws to keep up.

Sophie Goosens, of the law firm Reed Smith, explains further: "If you look at the history of copyright, it was invented in a world of scarcity, where only a handful of people could access the means of production. In a world where making music can happen at the push of a button, the volume of songs created might challenge other copyright concepts, including the concept of 'originality' which is indispensable for copyright protection to exist, at least as far as European copyright is concerned."

It is ironic that AI has become an effective tool for addressing copyright infringement. Pex and other companies utilize audio and video fingerprinting algorithms to detect rights violations online. These algorithms can even identify tracks that have been compressed, cropped, recorded in a noisy environment, or otherwise modified. Recently, Pex acquired Dubset (formerly The Future FM), an online mixed-audio distribution platform that permits DJs to upload, host, and share their mixes, podcasts, and other content while ensuring that the underlying rightsholders sampled within the mix are paid royalties for their works.

However, there are still issues to be addressed even in the area of copyright infringement. There have been cases where fingerprinting algorithms have mistakenly attributed royalty-free samples purchased on sites like Loopmasters to a certain artist, resulting in the distribution of royalties to that single artist. Another related issue arose during the Covid-19 live streaming boom when algorithms falsely flagged infringements during DJ sets on platforms such as Facebook and Instagram, leading to automatic disconnection of the video.

Furthermore, there is a potential concern regarding deep fakes, which are highly realistic videos, photos, or audio generated through advanced AI. Roc Nation has recently filed takedown requests for fake AI-generated clips of JAY-Z rapping Shakespeare soliloquies, but the legal implications surrounding such creations remain unclear.